T. 32 S., R. 19 W.,
Secs. 1 to 18, inclusive;
Secs. 20 to 29, inclusive;
Secs. 32 to 35, inclusive.
T. 33 S., R. 19 W.,
Secs. 2 to 4, inclusive;
Secs. 9 to 11, inclusive;
Secs. 15 and 16;
Secs. 21 and 22.

The areas described aggregate 55,831.11 acres of lands which have been patented through land-exchange procedure pursuant to the act of March 20, 1922, 42 Stat. 465, as amended by the act of February 28, 1925, 43 Stat. 1090.

OSCAR L. CHAPMAN,
Secretary of the Interior.

DECEMBER 19, 1951.

[F. R. Doc. 51-15280; Filed, Dec. 27, 1951; 8:46 a. m.]

[Public Land Order 773]

IDAHO

RESERVING PUBLIC LANDS FOR USE BY THE FOREST SERVICE, DEPARTMENT OF AGRICULTURE, AS ADMINISTRATIVE SITES

By virtue of the authority vested in the President by the act of June 4, 1897 (30 Stat. 34, 36; 16 U. S. C. 473), and otherwise, and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Subject to valid existing rights, the following-described public lands in Idaho are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining laws but not the mineral-leasing laws, and reserved for use by the Forest Service, Department of Agriculture, as administrative sites in connection with the administration of the Boise National Forest:

BOISE MERIDIAN

IDAHO CITY AIRPORT ADMINISTRATIVE SITE

T. 6 N., R. 5 E.,
Sec. 26, lots 4 and 5;
Sec. 27, lot 1, SE¼NE¼SE¼, and S½SW¼SE¼;
Sec. 34, lot 1.

The areas described aggregate 127.77 acres, partly within the boundaries of the Boise National Forest.

ELK CREEK ADMINISTRATIVE SITE

T. 13 N., R. 9 E.,
Sec. 32, W½NE¼NE¼, NW¼NE¼, N½SW¼NE¼, NW¼SE¼NE¼, NE¼NW¼, E½E½NW¼NW¼, E½NE¼SW¼NW¼, and N½SE¼NW¼.

The areas described aggregate 165 acres, within the boundaries of the Boise National Forest.

This order shall be subject to existing withdrawals for powersite and reclamation-project purposes so far as they affect any of the above-described lands; and it shall take precedence over, but not otherwise affect, existing reservations for national-forest purposes so far as they affect any of the above-described lands.

OSCAR L. CHAPMAN,
Secretary of the Interior.

DECEMBER 19, 1951.

[F. R. Doc. 51-15283; Filed, Dec. 27, 1951; 8:47 a. m.]

[Public Land Order 774]

ALASKA

EXCLUDING A TRACT OF PUBLIC LAND FROM THE TONGASS NATIONAL FOREST AND ADDING IT TO THE ADMINISTRATIVE RESERVE FOR THE NATIVES OF ANGOON COMMUNITY MADE BY PUBLIC LAND ORDER 593 OF JULY 8, 1949.

By virtue of the authority vested in the President by the act of June 4, 1897 (30 Stat. 34, 36; 16 U. S. C. 473), and pursuant to Executive Order No. 9337 of April 24, 1943, and the act of May 31, 1938 (52 Stat. 593; 48 U. S. C. 353a), it is ordered as follows:

Subject to valid existing rights and claims, and the provisions of existing withdrawals, the following-described tract of public land in Alaska, identified by a survey of which plats and field notes are on file in the Bureau of Land Management, Washington, D. C., is hereby excluded from the Tongass National Forest and is hereby withdrawn from all forms of appropriation under the public-land laws, including the mining laws and the mineral leasing laws, and added to the administrative reserve for the use of the natives of the Angoon Community established by Public Land Order 593 of July 8, 1949:

U. S. Survey No. 2413, lot 33, containing 2.63 acres.

OSCAR L. CHAPMAN,
Secretary of the Interior.

DECEMBER 19, 1951.

[F. R. Doc. 51-15282; Filed Dec. 27, 1951; 8:46 a. m.]

[Public Land Order 775]

NORTH DAKOTA

REVOKING EXECUTIVE ORDER NO. 5258 JANUARY 9, 1930

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910, 36 Stat. 847 (43 U. S. C. 141), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 5258 of January 9, 1930, temporarily withdrawing certain public lands in North Dakota for classification and in aid of legislation, which was revoked in part by Executive Order No. 5632 of May 27, 1931, and Public Land Order No. 634 of February 28, 1950, is hereby revoked as to the public lands in the remaining areas affected thereby, described as follows:

FIFTH PRINCIPAL MERIDIAN

T. 154 N., R. 74 W.,
Secs. 7 and 18.
T. 157 N., R. 74 W.,
Secs. 18, 29, and 31.
T. 153 N., R. 75 W.
Secs. 3, 18, and 25.
T. 154 N., R. 75 W.,
Secs. 6, 17, 18, 19, and 30.
T. 155 N., R. 75 W.,
Secs. 6, 19, 23, 29, and 31.
T. 157 N., R. 75 W.,
Secs. 14, 15, and 25.
T. 153 N., R. 76 W.,
Sec. 2.
T. 154 N., R. 76 W.,
Secs. 7, 24, 26, and 35.
T. 155 N., R. 76 W.,
Secs. 1, 10, 14, 15, and 23.
T. 158 N., R. 76 W.,
Secs. 1 and 12.
T. 155 N., R. 77 W.,
Secs. 9 and 18.
T. 156 N., R. 77 W.,
Secs. 15, 21, 28, 31, and 33;
Sec. 35, N½, W½SW¼, SE¼SW¼, and NE¼SE¼.
T. 157 N., R. 78 W.,
Sec. 8.

The public lands affected by this order aggregate approximately 3,262.46 acres.

The lands are primarily valuable for grazing purposes but have a low carrying capacity. They are suitable for disposal probably at public sale.

No applications for these lands may be allowed under the homestead, small-tract, or desert-land laws, or any other non-mineral public-land laws unless the land in question has already been classified as valuable or suitable for such types of application or shall be so classified upon consideration of an application.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on the 35th day after the date of this order. At that time the said lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, and selection as follows:

(a) *Ninety-one day period for preference-right filings.* For a period of 91 days, commencing at the hour and on the day specified above, the public lands affected by this order shall be subject only to (1) application under the homestead or the desert-land laws or the Small Tract Act of June 1, 1938, 52 Stat. 609 (43 U. S. C. 682a), as amended, by qualified veterans of World War II and other qualified persons entitled to preference under the act of September 27, 1944, 58 Stat. 747 (43 U. S. C. 279-284), as amended, subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications under subdivision (1) of this paragraph shall be subject to applications and claims of the classes described in subdivision (2) of this paragraph. All applications filed under this paragraph either at or before 10:00 a. m. on the 35th day after the date of this order shall be treated as though filed simultaneously at that time. All applications filed under this paragraph after 10:00 a. m. on the said 35th day shall be considered in the order of filing.

(b) *Date for non-preference-right filings.* Commencing at 10:00 a. m. on the 126th day after the date of this order, any lands remaining unappropriated shall become subject to such application, petition, location, selection, or other appropriation by the public generally as may be authorized by the public-land laws. All such applications filed either at or before 10:00 a. m. on the 126th day after the date of this order, shall be treated as though filed simultaneously at the hour specified on such 126th day. All applications filed thereafter shall be considered in the order of filing.

A veteran shall accompany his application with a complete photostatic, or other copy (both sides), of his certificate of honorable discharge, or of an official document of his branch of the service which shows clearly his honorable discharge as defined in § 181.36 of Title 43 of the Code of Federal Regulations, or constitutes evidence of other facts upon which the claim for preference is based and which shows clearly the period of service. Other persons claiming credit for service of veterans must furnish like proof in support of their claims. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated statements in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the Bureau of Land Management, Washington 25, D. C., shall be acted upon in accordane with the regulation contained in § 295.8 of Title 43 of the Code of Federal Regulations and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations, and applications under the desert-land laws and the said Small Tract Act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the Director, Bureau of Land Management, Washington 25, D. C.

OSCAR L. CHAPMAN,
Secretary of the Interior.

DECEMBER 19, 1951.

[F. R. Doc. 51-15281; Filed, Dec. 27, 1951; 8:46 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Docket No. 9233]

PART 2—FREQUENCY ALLOCATIONS AND RADIO TREATY MATTERS; GENERAL RULES AND REGULATIONS

PART 11—INDUSTRIAL RADIO SERVICES

MISCELLANEOUS AMENDMENTS

In the matter of providing for a Radiolocation Service, particularly one to establish locations accurate to within a few feet from distances beyond line of sight, on a permanent basis. Amendment of the Table of Frequency Allocations to provide for the use of frequencies in the band 1750–1800 kc by the Radiolocation Service. Promulgation of rules to govern a Radiolocation Service on a developmental basis, said rules to be designated Subpart M of Part 11, rules governing Industrial Radio Services.

This report and order is issued by the Commission in connection with a hearing held on the above entitled matter in Washington, D. C., on June 4 and 5, 1951, before Chairman Coy, pursuant to a supplemental Notice of Hearing and Notice of Proposed Rule Making released April 16, 1951. Specifically, the proceeding looked toward a permanent allocation of frequencies in the band 1750–1800 kc for use by a Radiolocation Service, information concerning the nature and extent of any plans for the use of these frequencies for radiolocation purposes, and the promulgation of Rules to Govern a Radiolocation Service. Witnesses appeared on behalf of the American Petroleum Institute, the Seismograph Service Corporation, the Hastings Instrument Company and the United States Coast and Geodetic Survey. While none of the issues aroused any substantial controversy, the question of the precise manner by which the Disaster Service could be protected from interference that might be caused by operations of the Radiolocation Service in the band 1750–1800 kc engendered extensive comment.

Radiolocation techniques fall, generally, into two classes: (1) Pulse-type direct ranging methods which are basically ultra-high frequency and above with resulting line-of-sight limitations on range,[1] and (2) phase-comparison methods which permit use of the low or medium frequencies and the elimination of the line-of-sight limitation. Provision for the former or pulse-type facility has already been made in the Table of Frequency Allocations under the terms of footnotes NG17 and 18, which make certain of the microwave bands available to the Radiolocation Service. This allocation is being implemented in the service rules which were proposed as a part of this proceeding.

The question to be answered, therefore, is not whether radiolocation facilities are to be provided, but where in exploration operations does line-of-sight ranging fall short of urgent needs. Experience to date indicates that, except for petroleum exploration operations in the Continental Shelf area, line-of-sight ranging would not fall short. The maximum dependable surveying range of an ultra high frequency system limits the direct operational range of the practical exploration system to an off-shore distance on the order of 15 to 25 miles. On the other hand, there appear to be areas in the Continental Shelf considered commercially exploitable for oil at distances of 40 to 70 miles from the Gulf of Mexico coastline. Use of customary survey procedures to carry the survey stepwise in the water to off-shore distances much greater than 15 to 25 miles appears neither reliable nor economically practical. Accordingly, the Commission is of the opinion that there is a definite need for a radiolocation service which is not subject to the line-of-sight limitations of the ultra and super high frequency systems as an aid in development of the oil resources lying beneath the waters of the Gulf of Mexico.

Data collected by the Commission since the earlier radiolocation hearing (Docket 8989) held in 1948 indicated that with existing techniques, an accurate system of radiolocation capable of operating beyond line-of-sight might be established by the use of frequencies in the vicinity of 2,000 kc. Recognizing the intermittent character of operations in the Disaster Service, the band 1750–1800 kc appeared to offer fewer obstacles to a sharing arrangement than other bands of similar propagation characteristics. Accordingly, one of the purposes of the hearing was to determine whether in view of the need for absolute Disaster Service priority in time of actual or imminent disaster, it is possible to permit the Radiolocation Service to share the band.

It is clear from the record that simultaneous co-channel operations in the same area of stations in the two services result in harmful interference. However, since radiolocation operations will be predominantly daytime and tests and drills in the Disaster Service will, except for those occasions of actual or imminent disaster, take place chiefly at night, the interference problem can be obviated, to a large extent, by a time sharing arrangement. The difficulty here, of course, lies in the fact that it is at those times which cannot be handled by time sharing that the necessity for interference-free communication for the Disaster Service is greatest.

It is apparent, therefore, that some scheme of notification to stations in the Radiolocation Service which will enable them to cease operations whenever disaster threatens or strikes is essential. As to this, the parties submitted a plan providing the framework within which a workable system of notification may be devised which can be used in the event of a disaster, to inform the operators of stations in the Radiolocation Service in the area to cease operations immediately. The general outline of the procedure to be followed has been embodied in § 11.611 of the rules which are being adopted herewith. While we will require that licensees in the Disaster Service cooperate in establishing a means of notification, we wish to emphasize that the burden of its establishment is on prospective licensees in the Radiolocation Service and failure to establish or maintain adequate liaison may result in discontinuance of use of the band for radiolocation purposes.

With respect to the nature and extent of any plans for the development and use of a Radiolocation Service in the band 1750–1800 kc in the near future, the amount of experimentation with the band to date has been rather limited. Testimony showed that this may be attributed to several factors. The controversy over the ownership of the Tidelands has apparently made it difficult for prospective drillers to find a landlord with whom they can negotiate a lease. Secondly, the heretofore temporary nature of the 1750–1800 kc allocation has made many interested persons loathe to spend large sums of money erecting stations and building equipment to operate in a band which might not be eventually available for radiolocation purposes. Finally, the existing shortage of petroleum reserve which in 1948 was one of

[1] In some systems, such as the Loran Radionavigation System, pulse techniques are utilized at medium frequencies, but the degree of accuracy obtainable with Loran is not suitable for consideration in connection with the oil exploration problem.